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Case Number: 24SMCV01259 Hearing Date: September 22, 2026 Dept: P

Tentative Ruling

Tallen

& Tyce Development, Inc. v. L.K. Plumbing & Heating Inc., et al., Case

No. 24SMCV01259

Plaintiff's

Motion for Determination of Good Faith Settlement

Hearing

Date: September 22, 2026

Background

This

is a construction defect case. Plaintiff Tallen & Tyce Development, Inc. ("Tallen & Tyce") sues Defendants L.K. Plumbing & Heating Inc. ("L.K.") for negligence, breach of express and implied warranty, strict liability, and breach of contract, alleging that L.K.'s work on a construction project at 1033 Somera Road caused property damage.

On

March 18, 2024, Tallen & Tyce filed the complaint.

On

May 16, 2024, L.K. filed a cross-complaint for indemnity against Plug It In Systems, Inc. ("Plug It In"), Arbuckle Electric Motors, Inc., Conery Manufacturing, Inc, and Zoeller Pump Company.

On

August 12, 2024, Plug It In filed a cross-complaint for indemnity against Moes 1-50.

On

August 26, 2026, Tallen & Tyce filed this motion for determination of good faith settlement between Tallen & Tyce, Plug It In, Arbuckle Electric Motors, Inc., and Conery Manufacturing, Inc. On September 9, 2026, L.K. filed opposition. On September 15, 2026, Tallen & Tyce filed a reply.

Arguments

Tallen

& Tyce propose a settlement with Plug It In, Arbuckle Electric Motors, Inc., Conery Manufacturing, Inc., and Zoeller Pump Company ("settling defendants") for \$200,000. Plug It In will contribute \$100,000, Arbuckle Electric Motors, Inc. will contribute \$50,000, Conery Manufacturing will contribute \$30,000 and Zoeller Pump Company will contribute \$20,000. Tallen & Tyce argue that this settlement was reached in good faith and that it is proportionate to the settling defendants' liability for Tallen & Tyce's total estimated damages of \$596,577.05. (Motion for Determination of Good Faith Settlement, p. 5.) Tallen & Tyce argues that this action arises out of flooding that occurred at the subject property on February 3, 2024 as the result of a rain storm. The day before the rain, L.K. replaced water pumps and Plug It In sent an electrician to confirm functionality. Tallen & Tyce argues that the damage was done either because the pumps failed or the electrical work on the pumps failed.

L.K.

does not oppose Tallen & Tyce's settlement with Arbuckle Electric Motors, Inc., Conery Manufacturing, Inc., or Zoeller Pump Company. L.K. only opposes the settlement with Plug It In. In opposition, L.K. argues that Plug It In is potentially entirely liable for Tallen & Tyce's damages because L.K. replaced the pumps and verified that they were working On February 2, 2024. L.K. argues that Tallen & Tyce's evidence that Plug It In made electrical repairs on the pumps before the rain started is self-serving because there are no independent witnesses who would confirm that Plug It In made it to the job site that afternoon. L.K. argues that Plug It In was supposed to come earlier in the day, while L.K. was still at the site, and never appeared. L.K. argues

that its expert testimony shows that Plug It In is liable.

In

reply, Tallen & Tyce argues that Plug It In's contribution to the settlement is not wildly disproportionate and that its evidence is not one-sided. Tallen & Tyce argue that a Plug It In electrician arrived at the property after L.K. left, so both sides have evidence that the other side was responsible for the flooding. Considering the damages at issue, Tallen & Tyce argues that the Tech-Bilt factors favor a determination of good faith settlement.

Motion for Determination Good Faith Settlement

In

any action in which two or more defendants are joint tortfeasors, a "good faith" settlement by one of these defendants with the plaintiff bars the other defendants from seeking contribution from the settling defendant. (Code Civ. Proc., § 877.) The settlement shall also "reduce the claims against the others" by the amount stipulated in the settlement. (Code Civ. Proc., § 877(a).) Any of the parties in such an action is "entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff" and the alleged joint tortfeasor, "upon giving notice in the manner provided in subdivision (b) of Section 1005." (Code Civ. Proc., § 877.6(a)(1).)

"The

determination as to whether a settlement is in good faith is a matter left to the discretion of the trial court." (Mattco Forge, Inc. v. Arthur Young & Co. (1995) 38 Cal.App.4th 1337, 1349.) It may base its determination on affidavits, and other evidence admitted in its discretion. (Code Civ. Proc., § 877.6(b).) The factors to determine whether a settlement is in "good faith," include, but are not limited to:

[A] rough approximation of plaintiffs' total recovery and the settlor's proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial. Other relevant considerations include the financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants. (Citation.)

(Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499 (Tech-Bilt).)¿

Opposing parties bear the burden of proof when arguing lack of good faith. (Ibid.)

Discussion

L.K. submits evidence that after the flood a neutral third party determined that a float switch electrical failure caused the flooding. LK submits evidence that when it left the property, the switch was functioning. (Muench Decl., ¶¶ 13-14.) Tallen & Tyce's evidence in support of its motion shows that L.K. remains liable under its contract with Tallen & Tyce and that the failure is not clearly attributable to Plug It In, who also verified the electrical work before the rain started. (Marton Declaration, ¶ 11.)

Of the proposed \$200,000 settlement, ½ will be paid by Plug It In, and ½ will be paid by the other settling defendants. Though Plug It In's share of the settlement represents only 1/5th of Tallen & Tyce's claimed damages, Plug It In is contributing half of the total settlement, which correlates to their potential liability as compared to the other settling defendants. The proposed settlement is close to 40% of the claimed damages, which is a reasonable settlement amount in recognition that a settlor should pay less than if he were found liable at trial. There is also no evidence of collusion or tortious conduct during settlement negotiations or any financial condition that would show undue pressure to settle or bad faith. The only factor that cuts against granting good faith settlement is that Plug It In's settlement contribution is only 1/10th of their liability insurance limit. However, no settlement in this matter would have reached Plug It In's \$1,000,000 policy limit—Tallen & Tyce's total estimated damages are only 60% of that amount.

Conclusion

Tallen & Tyce's Motion for Determination of Good Faith Settlement is GRANTED.